

VILLAFUERTE, et al v YGRENE ENERGY FUND, INC., et al

24CV47273

**DEFENDANT YGRENE'S MOTIONS
TO SET ASIDE DEFAULT JUDGMENT**

This is a breach of contract action brought by Marco Villafuerte and Ximena Villafuerte ("Plaintiffs") against multiple defendants including Ygrene Energy Fund, Inc. ("Ygrene."

Now before the Court is Ygrene's Motion for Relief from Default Judgment and Motion to Set Aside the order striking Ygrene's Answer.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED, Without** prejudice to refile.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

KILMADE v KAISER ENTERPRISES, INC.

24CV47369

REVIEW OF PROPOSED CLASS ACTION DISTRIBUTION

Based on the Declaration of Nick Castro filed on June 25, 2026, the Court finds all settlement funds have been properly disbursed. In light of the deadline for cashing of settlement checks, **this matter is scheduled for an OSC re Dismissal on January 27, 2027, at 1:30 p.m. in Dept. 4.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.